

Vatsaraj vs Rajashree Raju on 19 October, 2024

KABC030672292012

IN THE COURT OF XLVI ADDITIONAL CHIEF JUDICIAL
MAGISTRATE, BENGALURU.

PRESENT : LOKESHA. C.N, M.A., LL.,B.
XLVI Addl.C.J.M., Bengaluru.

C.C.No.23280/2012

19th day of October 2024

Complainant: Vatsaraj S/o M.C. Ramaswamy
Aged about 40 years,
No. B 103, Gagan Vihar Apartments,
Rajarajeshwari Nagar.
Bangalore.
(By Smt. Bhushani Kumar, Advocate)

V/s

Accused: Rajashree Raju @ Rajashree A.K. Iyer
@ A. Rajashree Iyer
Aged 38 years
R/o. No. 213/D, 1st main, 6th Cross
3rd Phase, West of Chord Road
Manjunathnagar
Bangalore-560 010.

(By Sri. S.Y.S Advocate)

2

C.C.No.23280/2012

JUDGMENT

This is a complaint filed by the complainant under Sec. 200 of Cr.P.C to prosecute and punish the accused for the alleged offence punishable Under Section 494, 495 and 420 of IPC.

2. The case of the complainant in brief is that, the complainant was looking for an alliance and he had visited the website of Jeevansathi.com to find suitable match. The accused had put her details on said website, where she was said to be never married. Thereafter, the complainant got married with the accused as per their customs on 13.09.2007 at Sri Ramanuja Samkruthi Bhavana, Maleshwaram, Bengaluru and said marriage was also registered with the register of marriage under

the Hindu Marriage Act. The complainant and accused have a daughter by Maninee. It is stated that in the month of May-2011, the accused picked up quarrel with the complainant and left the house of the complainant and living separately with her daughter. When the accused left the house, she took the documents of the complainant. When the complainant went to the police to lodge a complaint, he came to know about the fact that the accused already had been married and there were some cases are pending in Kolkata Courts between C.C.No.23280/2012 accused and her husband. Though the accused had already married, by suppressing said fact, got married with the complainant second time. The accused had married with one Krinamurthy Raju S/o.S.K. Murthy on 24.06.2001 and said marriage has been registered on 13.07.2001 under Hindu Marriage Act. The accused had filed a case in M.C. No.1228/2001 against her husband and the husband of the accused had filed a suit against the accused. The accused had filed a maintenance case under Section 125 of Cr.P.C in Crl. Mis No. 412/2001 before family court. The accused had lodged a complaint against her first husband for the offence punishable under Sec. 498(A) and 3 and 4 of D.P. Act. But, by concealing fact of said earlier marriage, the accused got married with the complainant and filed so many cases against the complainant. Hence, the complainant came with the present complaint seeking prosecute and punish the accused for the offence punishable under Sec. 494, 495 and 420 of IPC.

3. After presenting the complaint, this court has taken cognizance of the offence punishable under Sec. 494, 495 and 420 of IPC and recorded the sworn statement of the complainant and summons was issued to the accused. Pursuant to the service of the C.C.No.23280/2012 same, the accused appeared before the court through her council and obtained bail. Thereafter the evidence before charge has been recorded and considering the material, this court framed the charges for offence punishable under Sec. 494, 495 and 420 of IPC. The accused pleaded not guilty and claimed to be tried. Hence, the matter was set down for trial.

4. In order to prove the offence alleged against the accused, the complainant examined himself as Pw.1 and got marked the documents at Ex.P.1 to P.27 and closed his side evidence. After closing of the evidence of complainant, the statement of the accused was recorded as required under section 313 of Cr.P.C. The accused has denied the incriminating evidence appearing against her. In spite of giving sufficient opportunity, the accused did not choose to lead defense evidence.

5. Thereafter, heard the arguments from both sides and perused the material on record.

6. Under the fact and circumstances of the case the following points would arise for consideration.

C.C.No.23280/2012 POINTS Point No.1: Whether the complainant proves that the accused though having living husband, during his life time married with the complainant and committed an offence punishable Under Section 494 of IPC beyond all reasonable doubt?

Point No.2: Whether the complainant proves that the accused though she married, by concealing said marriage from the complainant, got married with the complainant and committed an offence punishable Under Section 495 of IPC beyond all reasonable doubt?

Point No.3: Whether the complainant proves that the accused dishonestly concealment of her earlier marriage, deceiving the complainant fraudulently induces complainant to marry her and committed an offence punishable Under Section 420 of IPC beyond all reasonable doubt?

Point No.4: What order?

C.C.No.23280/2012

7. My findings to the above points are as follows :

Point No.1: In the affirmative Point No.2: In the affirmative Point No.3: In the affirmative Point No.4: As per the final order, for the following :REASONS:

Points No.1 to 3:-

8. For the sake of convenience, I have taken up these three points together for common discussion, to avoid repetition facts and for better appreciation of evidence.

9. As could be seen from the averments made in the complaint, it is the case of the complainant that he got married with accused on 13.09.2007 at Bangalore as per their custom and said marriage was also registered under Hindu Marriage Act. It is stated that, before said marriage, accused had put her details on a website of Jeevansathi.com, where she was said to be never married. Therefore, the complainant got married with the accused. But, earlier to this marriage, the accused got married with one Krishnamurthy Raju S/o. S.K.Murthy on 24.06.2001 and said marriage was also duly registered under Hindu Marriage act. But, C.C.No.23280/2012 the accused by concealing, earlier marriage, with an intention to cheat the complainant, got married with the complainant though her first husband is alive and during the subsistence of the earlier marriage.

10. In order to prove his case, the complainant got examined himself as Pw.1 and deposed evidence in consonance with the complaint averments. In the evidence, Pw.1 deposed that he got married with the accused on 13.09.2007. Earlier to said marriage, he met the accused on a matrimonial website i.e. Jeevansathi.com. After the marriage, there was a quarrel between the complainant and accused. The accused left the house of the complainant and took all documents and other articles of the complainant. Thereafter, the accused has lodged a false complaint against the complainant before police. When the complainant went to the police station, he came to know the fact that the accused had given false information on matrimonial website that she was unmarried. But, at that time she got married with one Krishnamurthy Raju at Kalkata. By concealing the fact of said marriage, the accused with an intention to cheat the complainant, got married with the complainant. In support of his case the complainant got marked C.C.No.23280/2012 the documents at Ex.P.1 to P.27. The Ex.P.1 is compliant, Ex.P.2 is the profile of the accused which is said to have

been put in the website called Jeevansathi.com, Ex.P.3 is the copy of order passed in M.C.No.1795/2012, the Ex.P.4 is copy of petition, Ex.P.5 is copy of order sheet maintained in MAT No. 03/2001, Ex.P.6 is copy of the petition in MAT No.1228/2001, Ex.P.7 is copy of written statement, Ex.P.8 is list of documents, Ex.P.9 is copy of objection, Ex.P.10 is copy of affidavit filed in MAT No.03/2001, Ex.P.11 is list of the documents, Ex.P.12 is marriage registration certificate, Ex.P.13 copy of MC Petition, Ex.P.14 copy of marriage invitation Card, Ex.P.15 is Photographs, Ex.P.16 is marriage registration Certificate, Ex.P.17 is copy of complaint, Ex.P.18 is acknowledgment issued by the police, Ex.P.19 & 20 are endorsements issued by the police, Ex.P.21 and 22 are the statements, Ex.P.23 is copy of complaint, Ex.P.25 is copy of Judgment passed in MC.No.1795/2012, Ex.P.26 is copy of decree passed in MC NO.1795/2012, Ex.P.27 is copy of order of Hon'ble High Court of Karnataka passed in Crl.P.No.2013/2002.

11. As against evidence adduced by the complainant, the accused has taken her defense during the course of cross-

C.C.No.23280/2012 examination of Pw.1, that from 2007 to 2011 there were so many quarrel taken place between the complainant and accused. When the accused has lodged a complaint against the complainant to the police, then the complainant has filed present false case against her. Before marriage with the accused, the complainant had inquired about the information about accused person. Before the marriage with the complainant, the accused has informed that her first marriage was void marriage. The complainant used to harass the accused, hence she left the house of the complainant. The complainant had knowledge about the cases pending at Kolkata before the marriage itself. The accused herself informed about her first marriage to the complainant. To escape from liability of payment of maintenance, the complainant has filed false case.

12. Except said defense, the accused has not taken any specific defense regarding legal validity of her first marriage or second marriage. As per the defense of the accused, it is not the case of the accused that she never married with one Krishnamurthy Raju on 24.06.2001 and she never married with the complainant on 13.09.2007. As per the cross-examination of Pw.1 and the defense of the accused, the accused has not denied C.C.No.23280/2012 the marriage which is said to have been held on 24.06.2001 which is registered on 13.07.2001 with the one Krishnamurthy Raju. Further the accused has not a denied the lawful marriage with the present complainant held on 13.09.2007.

13. The complainant has produced the certified copy of marriage register certificate as per Ex.P.12. The accused has not denied the correctness of Ex.P.12. As per Ex.P.12, the marriage between the accused and one Krishnamurthy Raju was held on 24.06.2001 and said marriage was registered on 13.07.2001 under Hindu marriage Act before marriage registrar Kolkata. Therefore, on the perusal of the said marriage certificate, it appears that accused got married with one Krishnamurthy Raju on 24.06.2001 at No.53/C, Rajabasanth road, Kolkata. Then on 25.06.2001 they have filed application for registration of said marriage, then on 13.07.2001 said marriage has been duly registered before registrar of marriage Kolkata. The accused has not disputed said fact. The complainant has produced the copy of the petition in Matrimonial suit No.1228/2001 as per Ex.P.6 and written statement filed by the accused as per Ex.P.7. As per Ex.P.6, the first husband of accused by name Krishnamurthy Raju had filed said petition under section C.C.No.23280/2012 12 (c) of Hindu

Marriage Act against the accused for the relief of declaration that the marriage held on 24.06.2001 between the accused and himself is null and void. But, the accused herself filed written statement opposing said suit by taking contention that said marriage was lawful marriage solemnized as per law. Then as per Ex.P5, suit filed by Krishnamurthy Raju came to be dismissed in the year 2004. Therefore, on the perusal of the oral evidence of the complainant and Ex.P.4 to 6 and Ex.P.12 it clearly shows that the accused got married with one Krishnamurthy Raju on 24.06.2001 at Kolkata and said marriage was duly registered on 13.07.2001. Thereafter, though said Krishnamurthy Raju filed a petition for the relief of declaration to annul the marriage held on 24.06.2001 with the accused, but said suit came to be dismissed. Therefore, on the perusal of the said oral and documentary evidence, it clearly shows that the accused got married with one Krishnamurthy Raju on 24.06.2001 and said marriage is still subsisting. Moreover the accused has not denied the validity said said marriage.

14. The learned counsel for accused argued before the court that, this court without taking cognizance of the offence, recorded the sworn statement of the complainant. Hence the complaint is C.C.No.23280/2012 not maintainable and the accused is entitled for acquittal. On the perusal of the order sheet it appears that after presenting the complaint, case was posted for the sworn statement of complainant. No doubt, in the order sheet, there is no recital in respect taking of cognizance. But once after perusal of complaint if the matter is set down for recording of sworn statement, it means the cognizance of offence has been taken. It is well settled that taking cognizance of offence does not involve any formal action or indeed action of any kind, but occurs as soon as a magistrate as such applies his mind to the suspected commission of cognizable offence. Taking notice or becoming aware of the alleged commission of an offence itself amounts to taking cognizance of an offence. In the present case also, after perusal of complaint averments, this court applies its mind to the suspected commission of offence and posted the matter for examination of complainant. Therefore the contention of the accused is not valid one. Moreover till today the accused has not challenged facts of taking cognizance.

15. It is another contention of the learned counsel of the accused that, as per the complaint averments, the accused got knowledge of earlier marriage of accused in the year of 2011, but C.C.No.23280/2012 he filed this complaint in the year of 2012, hence the complaint is barred by limitation. As per section 468 of Cr.P.C, if the offence is punishable with fine only, to take cognizance the period of limitation is six month, if the offence is punishable with imprisonment not exceeding one year, to take cognizance the period of limitation is one year, if the offence is punishable with imprisonment exceeding one year but not exceeding three year, to take cognizance the period of limitation is three year. In the present case, the alleged offence are punishable with imprisonment more than three years. Therefore the question of limitation to take cognizance does not arise.

16. It is the case of the complainant that the accused by concealing earlier marriage, got married with complainant on 13.09.2007. It is stated that the accused though she was married, but she put her details on a website called Jeevansathi.com, where she was said to be never married. In the present case, the accused has not disputed the marriage held on 13.09.2007 between the complainant. The complainant has produced the marriage invitation card as per Ex.P.14,

photograph of the marriage as per Ex.P.15, and marriage registration certificate as per Ex.P.16. The C.C.No.23280/2012 accused has not disputed the validity of said documents. Moreover she has not denied the marriage ceremony with the complainant held on 13.09.2007 at Bengaluru. Therefore, on the perusal of the above said documents and oral evidence of the Pw.1 it clearly shows that, though the complainant got married with one Krishnamurthy Raju on 24.06.2001 that too registered on 13.07.2001, during the subsistence of said marriage and during the life time of her first husband, by concealing earlier marriage, got married with the complainant on 13.07.2007.

17. It is the case of the complainant that the accused concealing the fact of first marriage, put her details in a website called as Jeevasathi.com, where she was said to have been never married. The complainant has produced the profile of the accused which is said to have been put by the accused in Jeevasathi.com website as per Ex.P.2. The accused has not disputed said document. Moreover, during the course of cross-examination of Pw.1, the accused has admitted said fact by way of suggestion that the complainant and accused came to know each other in a website. As per Ex.P.2 the accused in her profile which is said have been put by her in Jeevasathi.com website, her marital status C.C.No.23280/2012 shown as never married. It is not the case of the accused that she did not put such information as per Ex.P2 in said website. The accused has not disputed or not denied said fact. Though, during the course of cross-examination, the learned counsel for the accused put a suggestion that the accused before got married with the complainant, got informed the complainant about her first marriage. But the Pw.1, has denied said fact. The Pw.1 in his evidence clearly deposed that in the year 2011, first time he came to know about the first marriage of the accused. But, the accused has not denied said evidence. The evidence deposed by the complainant that with an intention to cheat the complainant, the accused by concealing the first marriage, got married with the complainant is remained as unrebutted.

18. To constitute the offence of bigamy punishable under section 494 of IPC, there must be a existence of a prior marriage. Mere subsistence of a prior lawful marriage itself declares the subsequent marriage void, because it confirms the existence of a living wife or husband of such person. Then the validity of subsequent marriage is also most important element to constitute the offence of bigamy. As per section 494 of IPC, the first element is C.C.No.23280/2012 that the prior marriage must be a lawful one and the second element is that the subsequent marriage in question must also be lawfully valid one. Therefore to prove the commission of offence under section 494 of Indian penal Code, the complainant has to prove that, the accused has contracted a marriage with him, at that time, she had a husband living and the second marriage with him is void by the reason of its taking place during the life time of such husband. These are the only ingredients which the complainant has to prove in a prosecution under section 494 of IPC. Therefore the complainant has to prove the second marriage of accused is void by reason of its taking place during the life time of first husband. In the present case it is not in dispute that the parties to the proceedings are governed by Hindu Law. In case of Hindus, in view of provisions in section 11 and section 17 of Hindu Marriage Act 1955, any marriages solemnized after the commencement of said Act, would be null and void, if said marriage contravenes any of the conditions specified in clauses (i), (iv) and (v) of Section 5 of said Act. Section 5 sub-clause (i) provides that a marriage between two Hindus should not be solemnized if either party has a spouse living at the time of marriage. Therefore the complainant has to prove that the first husband of accused is living C.C.No.23280/2012 at the time

of second marriage with him. In the present case the accused has not disputed the lawful marriage with one Krishnamurthy Raju which was held on 24-06-2001 and the first husband of the accused was alive at the time of marriage with the complainant.

19. A marriage continues to be a marriage until it is dissolved. A marriage can be dissolved by resort to a court of Law. In the present case, though the first husband of the accused filed a petition under section 12 sub-clause (c) of Hindu Marriage Act, seeking declaration of his marriage held on 26-06-2001 with the accused is null and void as per Ex. P5 and P6, but said petition came to be dismissed. The accused has not disputed said fact and also she had contested said petition by filing written statement that her marriage was lawful marriage. As per Ex. P27 also, the first husband of the accused had filed said petition against the accused to quash the proceeding initiated by the accused for the offence punishable under section 498A of IPC and under section 3 and 4 of D.P. Act. As per Ex. P27, both parties have filed compromise petition for compound the offence with the permission of court. It is not the defense of the accused that she got married with C.C.No.23280/2012 complainant after obtaining divorce from her first husband. Therefore on the perusal of the oral and documentary evidence it appears that during the life time of her first husband, the accused got married with the complainant. The complainant has successfully proved that the first marriage of the accused held on 24-06-2001 with one Krishnamurthy Raju was lawful marriage and duly registered as per Ex. P12 at Kolkata and though the first husband of the accused is alive, by concealing said fact, the accused got married with the complainant.

20. It is not in dispute that, after the marriage with the accused in the year of 2012, the complainant has filed a petition against the accused in MC. No.1795/2012 under section 11 of Hindu Marriage Act, seeking declaration that marriage solemnized between the complainant and accused on 13.09.2007 is null and void. The complainant has produced the copy of Judgment and decree passed by the Hon'ble Family Court in MC. No. 1795/2012 as per Ex.P.25 and P26. As per said Judgment, the Hon'ble Family court declared the marriage of the complainant with the accused held on 13.09.2007 is null and void on the ground that the accused married with the complainant in the contravention of clause (i) of C.C.No.23280/2012 section 5 of the Hindu Marriage Act. As per said Judgment, the Hon'ble Family Court has clearly held that during the subsistence of first marriage with one Krishnamurthy Raju, the accused during the life time her first husband, got married with the complainant. In said judgment, the Hon'ble Family court has clearly given finding in respect of legal validity of both marriages. Therefore, on the perusal of the said Judgment and evidence adduced by the complainant, it clearly shows the accused has contracted marriage with the complainant on 13-09-2007 and at that time she had living husband by name Krishnamurthy Raju who got married on 24-06-2001, and the second marriage solemnized with the complainant on 13-09-2007 is void by reason of its taking place during the life time of her first husband. Moreover the Hon'ble family court, Bangalore as per Ex. P25 and P26 already declared the marriage of complainant with the accused is null and void since said marriage solemnized in contravenes of clause (i) of Section 5 of Hindu Marriage Act, 1955.

21. It is the case of the complainant that, as per Ex. P2, the accused, by concealing the fact of first marriage shown her marital status as never married, with an intention to cheat the C.C.No.23280/2012 complainant, and by concealing the fact of first marriage, got married with the

complainant on 13.09.2007. Therefore, the accused has committed the offence punishable under Sec. 420 and 495 of of IPC. Under section 415 of IPC, whoever by deceiving any person, fraudulently or dishonestly induces the person so deceived to do or omit to do anything which he would not to do or omit, if he were not so deceived and which act or omission causes or is likely to cause damage or harm to that person mind or reputation is said to cheat. As per Explanation to section 415 of IPC, a dishonest concealment of facts, is a deception within the meaning of that section. In the present case also as per Ex. P2, the accused deceived the complainant by concealing facts of her earlier marriage from the complainant by showing her marital status as never married and induces the complainant to get married with her. If she discloses the facts of her earlier marriage, the complainant definitely would not get married with her. But the accused dishonestly conceal the facts of subsisting of her first marriage. Hence she has committed cheating by concealing the fact of earlier marriage and dishonestly deceived the complainant which is punishable under section 420 of IPC. By concealment of earlier marriage, subsequently she got married again with complainant, C.C.No.23280/2012 hence she committed an offence which is punishable under section 495 of IPC. Hence considering the evidence deposed by the PW-1, and the documentary evidence, the complainant has proved the offences punishable under Section 420, 494 and 495 of IPC against the accused. Accordingly, I answer the Point No.1 to 3 in the Affirmative and proceed to pass the following:

:O R D E R:

Exercising the power under section 248 (2) of Cr.P.C. the accused is convicted of the offences punishable Under Section 494, 495 and 420 of IPC.

In view of detailed discussion made above, the complainant has proved the offences punishable Under Section 494, 495 and 420 of IPC. These offenses involve marital fidelity and can significantly harm the victim, impacting families and social stability. Allowing probation in such cases could undermine societal values regarding marriage and fidelity, potentially leading to an increase in such offenses. The gravity of these offenses often warrants a stronger response than probation, hence in the said circumstance it is C.C.No.23280/2012 not a fit case to extend the benefit of P.O. Act to the accused.

Hence call on for hearing on sentence.

(Dictated to the stenographer on computer, computerized by her corrected by me and then pronounced the judgment in the open court on 19th day of October 2024.)
(LOKESHA.C.N) 46th Addl.C.J.M.,Bengaluru.

HEARING ON SENTENCE.

Heard. Complainant and accused.

The accused submitted that she has a daughter and she is only care taker of her daughter. She wants to prefer an appeal against the judgment. Therefore, sought for take lenient view while imposing sentence.

As could be seen from the judgment the complainant has proved the commission of offence p/u/s 420, 494, 495 of IPC. Section 494 and 495 of IPC are the provisions which are the uphold the sanctity of the marriage which is fundamental institution in society. The offence of bigamy can cause emotional and financial cause to the spouses/children C.C.No.23280/2012 involved. Therefore, it is necessary to prevent such acts.

Adequate punishment serves as a deterrent against individuals who might consider entering into multiple marriages without legal grounds. Therefore, it is fit case to impose adequate punishment. Hence, I proceed to pass the following:

ORDER The accused is sentenced to undergo simple imprisonment for a period of two years for the offence p/u/s 494 of IPC and fine of Rs. 10,000/-. If default of payment of fine the accused shall undergo simple imprisonment for a period of three months.

The accused is sentenced to undergo simple imprisonment for a period of three years for the offence p/u/s 495 of IPC and fine of Rs. 10,000/-. If default of payment of fine the accused shall undergo simple imprisonment for a period of three months.

The accused is sentenced to undergo simple imprisonment for a period of two years for the offence p/u/s 420 of IPC and fine of Rs. 5,000/-. If default of payment of fine the accused shall undergo simple imprisonment for a period of three months.

All sentence shall run concurrently.

The bail bond and surety bond of the accused stands cancelled.

Out of fine amount an amount of Rs. 20,000/- shall be paid to the complainant as compensation u/s 357(1) of Cr.P.C, remaining 5,000/- shall be remitted to the state.

Supply the free copy of the judgment to the accused forthwith.

XLVI ACJM, Bengaluru.

:ANNEXURE:

The witnesses examined for the prosecution:

PW1 : - Vatsaraj

The documents exhibited for the prosecution:

Ex.P1	:	Complaint
Ex.P.1(a)	:	Signature
Ex.P.2	:	Personal profile
Ex.P2(a)	:	Signature
Ex.P.3	:	M.C. Petition No. 3/04
Ex.P.4	:	Copy of order sheet
Ex.P.5	:	Copy of application
Ex.P.6	:	Copy of petition
Ex.P.7	:	Copy of Written Statement
Ex.P.8	:	List of documents
Ex.P.9	:	Written objections
Ex.P.10	:	Copy of affidavit
Ex.P.11	:	Copy of the list of Exhibits
Ex.P.12	:	Copy of Marriage Certificate
Ex.P.13	:	Copy of Petition
Ex.P.14	:	Copy of Marriage Invitation Card
Ex.P.15	:	Photographs
Ex.P.16	:	Copy of Registration of Marriage Certificate
Ex.P.17	:	Copy of Complaint
Ex.P.18	:	Police Receipt
Ex.P.19	:	Police Endorsement
Ex.P.20	:	Police Endorsement
Ex.P.21	:	Statements
Ex.P.22	:	Statements
Ex.P.23	:	Copies of Complaint
Ex.P.24	:	Copies of Complaint
Ex.P.25	:	Judgment and Decree
Ex.P.26	:	Judgment and Decree
Ex.P.27	:	Crl.P. No. 2013/12- Order

C.C.No.23280/2012

List of material objects marked for the prosecution:

- NIL -

The witnesses and documents exhibited for the defense:

- NIL -

(LOKESHA.C.N) 46th Addl.C.J.M.,Bengaluru.